

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 06/30/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L24-01388
CASE NAME: JPMORGAN CHASE BANK N.A. VS. CHRISTINE FITZGERALD
*HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT FILED BY
PLN ON 3/17/26
FILED BY: JPMORGAN CHASE BANK N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion, on 4/16/26, to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff

on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$19,251.26, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$11,314.26.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$7,937.

Plaintiff to file order on Motion, as well as submit Judgment.

2. 9:00 AM CASE NUMBER: L24-03699
CASE NAME: MERCURY CASUALTY COMPANY VS. JAYLIN LOFTON
***HEARING ON MOTION IN RE: MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AS TO JANICE ARMSTRONG**
FILED BY:
TENTATIVE RULING:
Background

Plaintiff filed against Defendant Smith a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), as well as sanctions.

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Attachment A of the declaration filed alongside the Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff also filed, within the declaration, an accounting of attorney fees and costs involved in the filing of this Motion, amounting to \$460.

Plaintiff filed proof that they served the Motion and notice of the hearing on counsel for